

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Kastner	Team: Team # 2	CCRB Case #: 201311051	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/26/2013 1:55 PM	Location of Incident: 195th Street and 122nd Avenue; 113th Precinct stationhouse	18 Mo. SOL 5/26/2015	Precinct: 113		
Date/Time CV Reported Mon, 12/02/2013 1:09 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/02/2013 1:09 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jose Vasquezmiranda	29316	942655	113 PCT
2. DTS Thomas Reo	5817	946153	113 PCT
3. POM Michael Carleo	12860	934580	113 PCT
4. POM Michael Koledin	29773	949937	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Thomas Reo	Abuse: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Thomas Reo frisked § 87(2)(b)	A . Exonerated
B . DTS Thomas Reo	Abuse: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Thomas Reo searched § 87(2)(b)	B . Unsubstantiated
C . POM Jose Vasquezmiranda	Abuse: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Jose Vasquez Miranda refused to provide his shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Michael Carleo	Abuse: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Michael Carleo refused to provide his shield number to § 87(2)(b)	D . Substantiated
E . POM Michael Koledin	Abuse: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Michael Koledin refused to provide his shield numbers to § 87(2)(b)	E . Miscellaneous - Subject Resigned
F . DTS Thomas Reo	Abuse: At the 113th Precinct stationhouse, PO Thomas Reo refused to provide his name to § 87(2)(b)	F . Unsubstantiated
G . POM Jose Vasquezmiranda	Abuse: At the 113th Precinct stationhouse, PO Jose Vasquez Miranda searched the car in which § 87(2)(b) was an occupant.	G . Substantiated

Case Summary

On December 2, 2013, § 87(2)(b) called the CCRB and filed a complaint (encl. D1-D2). At approximately 2:40 p.m. on November 26, 2013, § 87(2)(b) was driving his 2007 Mercury Milan in the vicinity of 195th Street and 122nd Avenue in Queens, when he was pulled over by officers inside a black Impala, including PO Jose Vasquez Miranda, PO Thomas Reo, PO Michael Carleo and PO Michael Koledin, all from the 113th Precinct. § 87(2)(b) was arrested and transported to the 113th Precinct stationhouse. The following allegations resulted:

- **Allegation A – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Thomas Reo frisked § 87(2)(b)**

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **exonerated**.

- **Allegation D – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Michael Carleo refused to provide his shield number to § 87(2)(b)**

- **Allegation G – Abuse of Authority: At the 113th Precinct stationhouse, PO Jose Vasquez Miranda searched the car in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations D and G** be closed as **substantiated**.

- **Allegation B – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Thomas Reo searched § 87(2)(b)**

- **Allegation C – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Jose Vasquez Miranda refused to provide his shield number to § 87(2)(b)**

§ 87(2)(g)

- **Allegation F – Abuse of Authority: At the 113th Precinct stationhouse, PO Thomas Reo refused to provide his name to § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B, C and F** be closed as **unsubstantiated**.

- **Allegation E – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Michael Koledin refused to provide his shield numbers to § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **miscellaneous – subject officer resigned**.

This case was not mediation eligible.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a black man who is § 87(2)(b), with black hair and brown

eyes, was § 87(2)(b) old at the time of the incident.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on January 22, 2014 (encl. D4-D11) and provided an additional phone statement on March 7, 2014 (encl. D12). § 87(2)(g)

At approximately 2:40 p.m. on November 26, 2013, § 87(2)(b) was on his way to pick up his son from school in his 2007 Mercury Milan. [As per § 87(2)(b)'s phone statement, the car had no tinted windows.] As § 87(2)(b) approached a stop sign at the intersection of 195th Street and 122nd Avenue in Queens, a black Impala pulled up behind him and turned its lights on. § 87(2)(b) made a left turn and pulled over on 122nd Avenue between 195th Street and 194th Street. Four plainclothed officers exited the Impala. PO Jose Vasquez Miranda, identified via investigation, was described as a Hispanic man in his early 30s, approximately 5'6'' to 5'7'' tall, 205 to 210 pounds, with black hair, no facial hair and dressed in jeans. PO Thomas Reo, identified via investigation, was described as a white man, in his early 30s, approximately 6' tall, 190 pounds, slim, black hair, goatee, dressed in a black jacket and jeans with shield number 24811. PO Michael Koledin, identified via investigation, was described as a white man in his mid-20s, approximately 5'9'' tall, 150 pounds, slim, with black hair, no facial hair and dressed in a gray jacket and jeans. PO Michael Carleo, identified via investigation, was described as a white man, 6'1'' to 6'2'' tall, 200 pounds, slim, with black hair and dressed in jeans. No shields were visible.

PO Vasquez Miranda and PO Reo approached the driver's side of the car and PO Koledin and PO Carleo approached the passenger's side. [During his phone statement, § 87(2)(b) said that as the officers exited their car and approached, he kept his hands on the steering wheel, did not reach for anything or make any movements.] PO Reo asked for § 87(2)(b)'s license and registration. [During his phone statement, § 87(2)(b) said he complied by removing his license from his wallet, which was in his right rear pants pocket. § 87(2)(b) then returned his wallet to that pocket.] § 87(2)(b) also pressed a button to open a compartment located above the radio on the dashboard and removed the car's registration from inside. He kept his hands in his lap the rest of the time he was in the car and made no additional movements.

PO Reo ordered § 87(2)(b) to exit his car. § 87(2)(b) asked why he was pulled over. PO Vasquez Miranda replied that he failed to signal. § 87(2)(b) asked why he had to exit for a traffic violation. PO Reo appeared upset and again ordered § 87(2)(b) to exit. § 87(2)(b) then complied without assistance. § 87(2)(b) was wearing a black hoodie with a full length zipper that had two front pockets, and sweatpants that had two front pockets and two rear pockets. Aside from his wallet, § 87(2)(b)'s pockets were empty. PO Reo frisked § 87(2)(b)'s torso, arms and legs, over his clothing. PO Reo asked if he had anything sharp in his pockets, § 87(2)(b) said no and that PO Reo could check him all he wanted to. PO Reo then reached his hands into all of § 87(2)(b)'s pockets.

PO Reo ordered § 87(2)(b) to step to the rear of his car and § 87(2)(b) complied. He stood with PO Koledin and PO Carleo, but refused to face away from his car like the officers requested. § 87(2)(b) saw PO Vasquez Miranda approach § 87(2)(b)'s driver's door, which was still open from when § 87(2)(b) exited and saw PO Reo approach the front passenger's door. As the officers were about to enter the car, § 87(2)(b) asked why they were searching it and said after they finished, he wanted "everyone's badge numbers." [During his phone statement, § 87(2)(b) said the request for the officers' shield numbers actually occurred while he was being frisked and searched.] As he said this, § 87(2)(b)'s hands were to his sides and he made no movements. PO Reo, who appeared upset, approached the car's rear. § 87(2)(b) did not recall whether PO Reo

had entered the car prior to this. PO Reo made a comment that § 87(2)(b) could not recall and one of the officers, § 87(2)(b) could not recall which, said § 87(2)(b) was being a “smartass.” § 87(2)(b) asked what he was being arrested for and PO Vasquez Miranda, who appeared upset, said it was for assaulting his partner, who he identified as PO Koledin. § 87(2)(b) denied doing this.

PO Koledin and PO Carleo each grabbed one of § 87(2)(b)'s wrists and twisted his arms behind his back. PO Reo, PO Koledin and PO Carleo then lifted him up in the air slightly by his arms, so that his feet were off the ground, and forcefully slammed him onto the trunk of his car, so that his chest, but not his head, made contact with the car. The action of lifting him up and slamming him onto the car was done in one quick movement. § 87(2)(b) could not recall whether his body making contact with the car produced any noise. PO Reo then placed § 87(2)(b) in handcuffs. § 87(2)(b) received no injury to his chest as a result of being slammed into his car, but as a result of being tightly handcuffed, he sustained numbness to his hand. § 87(2)(b) felt that the officers were handling him as if he was resisting arrest, which he denied. § 87(2)(b) did nothing with his body. He did not know what PO Vasquez Miranda was doing during this time.

§ 87(2)(b) was transported to the 113th Precinct stationhouse in the Impala and PO Koledin transported § 87(2)(b)'s car, which was not searched at the scene, there. During the transport, § 87(2)(b) told the officers that he intended to file a complaint. At the stationhouse, § 87(2)(b) was placed inside a holding cell with three of four prisoners with whom he later was placed in a lineup. Near the holding cells, PO Reo verbally provided § 87(2)(b) with his shield number, but refused to write it down for him. § 87(2)(b) asked for PO Reo's name, but PO Reo refused to provide it. PO Reo was the only officer who provided his shield number to § 87(2)(b) during this incident.

PO Vasquez Miranda processed § 87(2)(b)'s arrest. PO Vasquez Miranda told § 87(2)(b) that the reason the officers did all of this was to “cover their asses” since § 87(2)(b) said he would file a complaint. Two or three black prisoners, one wore glasses and one wore gray sweatpants, were inside the holding cell with § 87(2)(b) at the time. § 87(2)(b) could not describe any of his cellmates further. PO Reo, PO Koledin and PO Carleo were not present.

At Central Booking, § 87(2)(b) called his mother, who said she had called his cell phone and spoken with an officer. PO Reo later told § 87(2)(b) that the officer was him. § 87(2)(b)'s phone was locked, so the only function PO Reo was able to access was answering an incoming call. § 87(2)(b) knew that his car, which was not vouchered and was picked up from the stationhouse by his brother, was later searched because § 87(2)(b)'s phone, which was in the driver's door side pocket, and money, which was in the closed center console, were removed and vouchered. Further, upon his release, the rest of the items in § 87(2)(b)'s car were found to have been moved from their positions and placed on the floor. [During his phone statement, § 87(2)(b) said these items were various papers that had been inside the back leather pouches of the car's front seats.]

§ 87(2)(b) was charged with § 87(2)(a) 160.50, which PO Vasquez Miranda said the officers found in his car, but which § 87(2)(b) denied having. He was not charged with assault. § 87(2)(b)

Attempts to Contact Civilians

§ 87(2)(b) said he was initially placed inside a holding cell with three of four prisoners and that he was later inside the holding cell with two or three black prisoners. It is unclear whether the two

or three black men were part of the first described group of prisoners. § 87(2)(b) described one man as wearing glasses and one as wearing gray sweatpants, but he could not describe any of his cellmates further. The 113th Precinct Prisoner Holding Pen Roster (encl. F28-F29) indicates that § 87(2)(b) was lodged from 2:10 p.m. until 6:30 p.m. and that four male prisoners' lodging times somewhat overlapped with his. However, their arrest reports indicate that none of these men were wearing glasses or gray sweatpants at the time of their arrests (encl. F8-F19). Without further descriptive details, the investigation was unable to identify which prisoners may have witnessed PO Reo refuse to provide his name to § 87(2)(b).

NYPD Statements:

Subject Officer: PO THOMAS REO

- *PO Reo, a white man who is § 87(2)(b), with brown hair and green eyes, was § 87(2)(b) old at the time of the incident. Since this incident, PO Reo has been promoted to the rank of detective.*
- *PO Reo worked from 8 a.m. to 4:35 p.m., assigned to a SET team within the confines of the 113th Precinct with PO Jose Vasquez Miranda, PO Michael Carleo and PO Michael Koledin. The SET team patrols for and responds to calls related to violent crimes, gang activity and narcotics. PO Reo was dressed in plainclothes and assigned to a black Impala, RMP # 445.*

Memo Book

- 1:55 p.m., One under arrest at 122nd Avenue and 194th Street. § 87(2)(b) DOB: § 87(2)(b). Fail to signal. Furtive movements. Refuse ID. Did resist (encl. E1-E4).

CCRB Statement

PO Thomas Reo was interviewed at the CCRB on April 3, 2014 (encl. E5-E8).

At approximately 1:55 p.m. on November 26, 2013, PO Reo, PO Jose Vasquez Miranda, PO Michael Carleo and PO Michael Koledin, were conducting gang and narcotics enforcement in the vicinity of 195th Street and 122nd Avenue in Queens. PO Reo, who was operating the officers' Impala, observed a Mercury with no tinted windows, fail to signal while making a turn. Given that the officers were not responding to any calls at that moment, they conducted a car stop. The operator of the car, identified via arrest photo as § 87(2)(b) immediately pulled over. The area in which the car stop took place is residential and typically quiet, although PO Reo could not recall if that was the case during this incident. The lighting was sufficient and nothing obstructed PO Reo's view of § 87(2)(b).

All four officers exited the Impala and approached § 87(2)(b)'s car, PO Reo and PO Vasquez Miranda on the driver's side and PO Carleo and PO Koledin on the passenger's side. As PO Reo reached the rear window, he saw § 87(2)(b) lean his torso forward, bend down so that his hands were not visible, and dip his right shoulder toward the area underneath his seat. This led PO Reo to suspect that § 87(2)(b) may have been hiding a weapon. Aside from this, § 87(2)(b) made no additional movements.

PO Reo approached the driver's door and ordered § 87(2)(b) to show his hands. § 87(2)(b) immediately began acting irate and combative, loudly saying that the officers had no reason to stop him and that they had followed him. § 87(2)(b) acted this way for the remainder of the incident. From the moment PO Reo ordered him to show his hands, § 87(2)(b)'s hands were visible because as he spoke in an animated way, he moved his hands back and forth. PO Reo

ordered § 87(2)(b) to produce identification three times and to produce the car's information, but § 87(2)(b) refused. § 87(2)(b) never produced his identification, which was later recovered at the 113th Precinct stationhouse. At this point, due to § 87(2)(b)'s earlier furtive movement and his combative demeanor, PO Reo felt uncomfortable and had become increasingly more suspicious that what § 87(2)(b) put under his seat was a weapon. PO Reo ordered § 87(2)(b) to exit the car for the safety of the officers.

PO Reo could not recall what § 87(2)(b) was wearing, but as he exited the car, PO Reo observed a fairly large and bulky bulge in § 87(2)(b)'s front left pants pocket. PO Reo immediately grabbed the bulge and identified the object as a cell phone. PO Reo later determined that the phone was a flat screen Samsung, but he did not know whether this was the phone that was later vouchered or whether there was another phone inside § 87(2)(b)'s car. PO Reo did not frisk any other part of § 87(2)(b)'s body and did not reach into any of § 87(2)(b)'s pockets. Once out of the car, § 87(2)(b) made no movements and had not reached for the bulge, because as PO Reo explained, § 87(2)(b) had no time to do so prior to the frisk.

PO Reo sent § 87(2)(b) to the rear of the car with PO Carleo and PO Koledin. When § 87(2)(b) had exited, he left the driver's door open. Once § 87(2)(b) was at the rear, PO Reo "peeked" inside to see the area where § 87(2)(b) had reached. PO Reo bent over, placed his upper body inside the car, and looked under the driver's seat. A knife was immediately visible. PO Reo initially said "we" recovered a straight knife, described as one with no button to extend the approximately three-inch blade, with a black handle. He also initially said a small canister of mace was recovered from the floor near the front passenger seat, but PO Reo did not recall who recovered the mace or at what point it was recovered. PO Reo then said he was the only officer who searched § 87(2)(b)'s car. He was unsure what PO Vasquez Miranda was doing during this time. PO Reo did not search any other part of the car, including any compartments or the trunk.

At the rear, § 87(2)(b) had been yelling at PO Carleo and PO Koledin and refusing to follow their directions. § 87(2)(b) asked PO Reo for his shield number and PO Reo said, "28411," which was his shield number at the time. However, PO Reo did not hear § 87(2)(b) ask any other officer for their shield number. When asked whether he heard any other officer provide their shield number, PO Reo said, "I can't say I did."

PO Reo told PO Carleo that they had a possible arrest situation. PO Reo explained that at this point, discretion came into play and he still may have just decided to speak with § 87(2)(b) about the knife as opposed to arresting him. However, when PO Carleo ordered § 87(2)(b) to turn around and place his hands behind his back, § 87(2)(b) refused to comply. At that point, PO Reo realized that this was definitely an arrest situation. No conversation took place in regard to this decision because PO Reo believed it was readily apparent to all of the officers.

A brief 10-second-or-less struggle ensued at the rear of the car involving § 87(2)(b), PO Carleo and PO Koledin. § 87(2)(b) was placed against his car in order to handcuff him and the officers were then able to do so. § 87(2)(b) was searched, placed in the Impala, and transported to the 113th Precinct stationhouse. No contraband was recovered as a result of this search. § 87(2)(b)'s car was transported to the stationhouse by one of the other officers.

At the stationhouse, the officers escorted § 87(2)(b) to a holding cell. That was the last time PO Reo saw § 87(2)(b). He did not see or hear his partners interacting with § 87(2)(b) at the stationhouse. PO Reo did not recall § 87(2)(b) asking him for his name at the stationhouse and

never provided his name to § 87(2)(b). Reo did not know whether § 87(2)(b)'s car was vouchered and he did not participate in any type of car search, including an inventory search, at the stationhouse. PO Reo did not know where the money, keys and cell phone that were vouchered in regard to § 87(2)(b)'s arrest were recovered from.

Subject Officer: PO JOSE VASQUEZ MIRANDA

- *PO Vasquez Miranda, a Hispanic man who is § 87(2)(b), with black hair and black eyes, was § 87(2)(b) old at the time of the incident.*
- *PO Vasquez Miranda worked from 8 a.m. to 11:35 p.m., including six hours of overtime, as part of the SET team, a precinct level strategic enforcement team that follows gangs through social media and surveillance. He was patrolling for those types of pick up jobs, working with PO Thomas Reo, PO Michael Carleo and PO Michael Koledin, dressed in plainclothes and assigned to unmarked RMP 445, a black Chevy Impala.*

Memo Book

1:55 p.m., One under at 194th Street and 122nd Avenue. § 87(2)(b) DOB: § 87(2)(b)
2:30 p.m., Started paperwork. New arrest # § 87(2)(a) 160.50
§ 87(2)(b). 9 p.m., Spoke to ADA. Received and sent all paperwork. 11:35 p.m., End of tour. 6 hours overtime (encl. E9-E11).

Arrest Report

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
Force was noted as not being used (encl. F5-F7).

Criminal Court Complaint

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement

PO Jose Vasquez Miranda was interviewed at the CCRB on April 3, 2014 (encl. E12-E16). § 87(2)(g)
§ 87(2)(g)

From the Impala, PO Vasquez Miranda observed § 87(2)(b) begin to hunch over and lean forward. His back, but not his head or hands, was still visible. As the officers approached § 87(2)(b) who maintained his hunched over position, PO Vasquez Miranda said, "From my point of view [as an officer], I thought he was hiding something that he shouldn't have." The officers ordered § 87(2)(b) to show his hands and put them in the air two or three times and as they continued walking and reached the trunk of the car, § 87(2)(b) removed his hands from underneath his seat and showed them to the officers. As the officers were still approaching, § 87(2)(b) also looked back and patted himself down near his pants pockets as he sat in the car. This

action led PO Vasquez Miranda to describe § 87(2)(b)'s demeanor as very jittery and nervous.

PO Reo faced § 87(2)(b)'s driver's door and PO Vasquez Miranda stood to PO Reo's left. § 87(2)(b) refused PO Reo's orders to produce his license. As § 87(2)(b) exited the car, PO Vasquez Miranda observed a very large rectangular or square-shaped bulge protruding from one of § 87(2)(b)'s front pants pockets. The object was not sticking out of the top of the pocket. PO Vasquez Miranda suspected the object forming the bulge to be a weapon, but not a specific weapon. PO Vasquez Miranda pointed the bulge out to PO Reo, who then frisked the pocket where the bulge was, over § 87(2)(b)'s clothing. § 87(2)(b)'s movement of patting his legs and the visible bulge are what led to the frisk. PO Vasquez Miranda did not recall PO Reo frisking any other part of § 87(2)(b)'s body. Upon feeling the bulge, PO Reo said the object was a cell phone. PO Vasquez Miranda did not recall § 87(2)(b) telling PO Reo that he could "check him" all he wanted to. PO Reo did not enter any of § 87(2)(b)'s pockets. No additional frisk or search of § 87(2)(b) occurred at the scene until right before he was placed inside the Impala. PO Vasquez Miranda noted that the cell phone was enclosed in a case that made the bulge larger than usual.

As § 87(2)(b) stood at the rear of the car with PO Carleo and PO Koledin, PO Vasquez Miranda watched PO Reo recovered a small paring knife with a black handle and a blade that was less than four inches long from underneath the driver's seat of the car. The knife was straight and not a gravity knife. None of the other officers searched § 87(2)(b)'s car at the scene. Prior to the discovery of the knife, § 87(2)(b) had been acting combative, described as verbally arguing with PO Carleo and PO Koledin, although PO Vasquez Miranda could not recall what was said. When PO Reo looked underneath the driver's seat, § 87(2)(b) asked why he did so.

PO Vasquez Miranda initially confirmed that he heard § 87(2)(b) say he wanted everyone's shield number and said he immediately provided his shield number and informed § 87(2)(b) that it would be on his arrest paperwork as well. PO Vasquez Miranda did not know whether his partners provided their shield numbers, because he was not focused on them, but he never heard or saw any of them do so at the initial scene or later at the stationhouse. At a later point in his interview, PO Vasquez Miranda then said § 87(2)(b) had only addressed the shield number request to him, but acknowledged that he was focused on other things at the time, and did not hear whether § 87(2)(b) also requested the information from his partners. When the discrepancy in PO Vasquez Miranda's statement was pointed out, he explained that since he was going to be § 87(2)(b)'s arresting officer, he provided § 87(2)(b) with his information. When asked whether § 87(2)(b) asked for "everyone's shield number" or only his arresting officer's shield number, PO Vasquez Miranda acknowledged that § 87(2)(b) asked for "shield numbers" [plural].

When the officers said § 87(2)(b) was under arrest, § 87(2)(b) began to struggle slightly. He had been facing away from his car, but at this point, he began to turn his toward it, which led PO Vasquez Miranda to believe that § 87(2)(b) intended to approach him and PO Reo. PO Carleo and PO Koledin grabbed § 87(2)(b) and attempted to handcuff him. They instructed § 87(2)(b) not to make the situation worse. § 87(2)(b) became compliant and was placed in handcuffs. He later noted that it was a rough neighborhood and that he had the knife for protection.

At the stationhouse, PO Vasquez Miranda provided his name to § 87(2)(b) identified himself as his arresting officer, and instructed him to address any questions or concerns to him. PO Vasquez Miranda did not hear § 87(2)(b) ask PO Reo for his name and did not hear PO Reo provide his name to § 87(2)(b).

PO Vasquez Miranda, with no assistance from any other officer, searched § 87(2)(b)'s car at the stationhouse to determine whether it contained any additional weapons or contraband. He opened each door one-by-one and searched the areas closest to the doors. PO Vasquez Miranda recovered a canister of pepper spray from underneath the front passenger's seat. He also searched through the car's compartments to obtain § 87(2)(b)'s social security card and registration. The center console, glove compartment, side pockets behind the front seats and trunk were searched. § 87(2)(b) had informed PO Vasquez Miranda that the car did not belong to him and PO Vasquez Miranda verified this via the registration, although he could not recall where he recovered it from.

PO Vasquez Miranda vouchered § 87(2)(b)'s property, including cash and keys that were recovered from the car. § 87(2)(b)'s phone was recovered from his person, although PO Vasquez Miranda could not recall whether another phone had been inside the car. There were additional items inside the car, which PO Vasquez Miranda could not recall, that were not vouchered. He had asked § 87(2)(b) which items in the car belonged to him and vouchered those, but not the other items. The car was not vouchered because it belonged to one of § 87(2)(b)'s relatives, PO Vasquez Miranda could not recall whom. That relative subsequently picked the car up from the stationhouse after it had been there for approximately two hours. PO Vasquez Miranda explained that procedurally, it was up to his discretion whether he released the car to the owner or not. The search of the car at the stationhouse and its release to its owner were not documented in PO Vasquez Miranda's memo book or anywhere else.

Subject Officer: PO MICHAEL CARLEO

- *PO Carleo, a white man who is § 87(2)(b) with salt and pepper hair and blue eyes, was § 87(2)(b) old at the time of the incident.*
- *PO Carleo worked from 8 a.m. to 4:35 p.m., as part of the Strategic Enforcement Team (SET), which is a plainclothed unit that deals with precinct level gangs. He was working with PO Jose Vasquez Miranda PO Thomas Reo and PO Michael Koledin and assigned to unmarked RMP # 445, a black Chevy Impala.*

Memo Book

1:55 p.m., One under arrest by PO Vasquez Miranda at 194th Street and 122nd Avenue (encl. E17-E19).

CCRB Statement

PO Michael Carleo was interviewed at the CCRB on April 3, 2014 (encl. E20-E23). § 87(2)(g)

The officers were conducting gang enforcement when they observed § 87(2)(b) fail to signal upon making a left turn. Although § 87(2)(b) was not necessarily suspected of having been involved in gang activity, PO Carleo noted that gang members are sometimes in cars. As the officers approached § 87(2)(b)'s car, PO Carleo observed § 87(2)(b) reach down and believed he was putting something away underneath his seat. PO Carleo observed no additional movements inside the car as he approached the passenger's side with PO Koledin.

As soon as § 87(2)(b) exited the car, PO Reo and PO Vasquez Miranda frisked him for weapons. Although PO Carleo could not recall whether he was still on the passenger's side of the car or had made his way to the rear yet, he saw PO Reo and PO Vasquez Miranda pat down § 87(2)(b)'s torso, waist and legs. PO Carleo could not recall whether § 87(2)(b) made any movements once out of the car or whether he observed any bulges or anything suspicious on § 87(2)(b)'s person.

§ 87(2)(b)'s action inside his car led PO Carleo to believe that he had a weapon on his person. When PO Carleo was told that he had previously said § 87(2)(b) seemed to be putting something away underneath his seat and asked whether there was something specific that led him to believe that § 87(2)(b) still had a weapon on his person, PO Carleo first said, "It's possible" and then said there was nothing specific that he could recall. PO Carleo did not recall PO Reo or PO Vasquez Miranda reaching into any of § 87(2)(b)'s pockets.

At the car's rear, § 87(2)(b) stood with his back to the car and PO Carleo stood in front of him, facing the car. PO Carleo initially said PO Vasquez Miranda and PO Reo went to see what had been placed underneath the driver's seat of the car, but then said only one of those officers, he could not recall which, looked underneath the driver's seat. Prior to the car search, § 87(2)(b) was calm, but said he did not understand why he was being stopped and harassed. PO Carleo did not recall hearing § 87(2)(b) say anything to the effect of wanting "everyone's" shield numbers, but § 87(2)(b) did not specifically ask PO Carleo for his shield number. PO Carleo never provided his shield number to § 87(2)(b). PO Carleo's shield was visible and hanging off of his neck throughout the incident.

During the car search, § 87(2)(b) turned around and began walking toward the front of the car. PO Carleo approached § 87(2)(b) from behind and attempted to restrain him. He wrapped his arms around the outer sides of § 87(2)(b)'s arms and hooked his lower arms around and through the inside of § 87(2)(b)'s arms, so that PO Carleo's hands ended up against § 87(2)(b)'s back. § 87(2)(b) once again became combative, described as moving his torso/body left and right, although not necessarily attempting to get away from PO Carleo, and refusing to be handcuffed. § 87(2)(b) did nothing else to resist aside from moving his torso. PO Carleo stood upright and leaned, but did not forcefully slam, § 87(2)(b)'s body against his car, near the rear driver's side taillight. PO Carleo used this position as a tactic to enable PO Koledin to handcuff § 87(2)(b). At no point were § 87(2)(b)'s feet lifted off the ground. PO Reo came to the car's rear as this interaction took place, but he did not assist because PO Carleo had the situation under control. This aspect of the incident lasted approximately 10 seconds.

At the stationhouse, PO Carleo had no interaction with § 87(2)(b) aside from lodging him in a holding cell. PO Carleo could not recall whether he saw PO Reo interact with § 87(2)(b) at the stationhouse. When asked whether he specifically heard § 87(2)(b) ask PO Reo for his name, PO Carleo said, "Not that I know of."

Officer Not Interviewed

- The CCRB's Monitoring Analysis Unit confirmed that PO Michael Koledin resigned from the NYPD on January 26, 2014 (encl. H22), and as such, he was unable to be interviewed.

NYPD Documents

Prisoner Holding Pen Roster and Arrest Reports

- The 113th Precinct's Prisoner Holding Pen Roster notes that § 87(2)(b) was guarded by PO Vasquez Miranda and that § 87(2)(b) was lodged from 2:10 p.m. until 6:30 p.m., when he was transported to Central Booking. Four male prisoners had lodging times that somewhat overlapped with § 87(2)(b)'s lodging (encl. F28-F29). Their arrest reports note that they were all black men, but none wore glasses or gray sweatpants (encl. F8-F19).

Property Vouchers

- A black handled knife and a white canister of repellant were vouchered as arrest evidence and cash, two sets of keys, a white Samsung Galaxy SII, a black cell phone battery and a black cell phone case were vouchered for safekeeping (encl.F30-F25).

NYPD Officer Photo and Pedigree Sheet

- PO Koledin's NYPD officer photo depicts him as a light-skinned man. His race, height, weight and hair color are not noted on his pedigree information, but his date of birth is, which confirms that PO Koledin was § 87(2)(b) old at the time of this incident (encl. F41).

Arrest for Incident and Disposition

- **[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]**

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 20, 2014, nearly two months after the filing deadline, with regard to the incident.

Civilian's Criminal History

- **[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]**

Civilian's CCRB History

- § 87(2)(b) has participated in the following CCRB complaints (encl. C1):

- § 87(2)(b)

Subject Officers' CCRB History

- PO Vasquez Miranda has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. B1-B2).
- PO Reo has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. B3-B5).
- PO Carleo has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. B6-B7).
- PO Koledin was a member of the service for two years and there are no substantiated CCRB allegations against him (encl. B8).

Conclusion

Identification of Subject Officers

- PO Reo, PO Vasquez Miranda and PO Carleo acknowledged interacting with § 87(2)(b) and that PO Koledin was present for this incident. PO Carleo is a white man who is § 87(2)(b), has salt and pepper hair and was § 87(2)(b) old at the time of the incident. PO Koledin's NYPD officer photo and pedigree sheet does not note his race, height, weight, or hair color, but the photo depicts him as a light-skinned man and his age is confirmed as § 87(2)(b) years old at the time of this incident (encl. F41). § 87(2)(g)

Allegations Not Pled

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Thomas Reo frisked § 87(2)(b)

While it is undisputed that PO Reo frisked § 87(2)(b) § 87(2)(g) § 87(2)(b) § 87(2)(b) alleged that when he exited his car, PO Reo patted down his torso, arms and legs. § 87(2)(b) § 87(2)(b) denied making any movements inside the car, aside from removing his license from his wallet and registration from a dashboard compartment. § 87(2)(b) said the only item in any of his pockets was his wallet, which was in a rear pants pocket.

All three officers interviewed said that as they approached § 87(2)(b)'s car, they saw him bend forward and believed him to be hiding a weapon. PO Vasquez Miranda noted that § 87(2)(b) appeared jittery and nervous, indicated by him looking back toward the officers and patting himself down near his pants pockets. Further, PO Reo noted that during the interaction, § 87(2)(b) § 87(2)(b) acted irate and combative, described as him being loud, saying that the officers had no reason to stop him and that they had followed him.

When § 87(2)(b) complied with the order to exit his car, PO Reo and PO Vasquez Miranda said they observed a bulge emanating from § 87(2)(b)'s front left pocket. Those officers described the bulge as fairly large and bulky and rectangular or square shaped. PO Vasquez Miranda suspected the object forming the bulge to be a weapon, but not a specific weapon.

Due to § 87(2)(b)'s movements and behavior inside the car, as well as the suspicious bulge, PO Reo frisked § 87(2)(b)'s pocket, and immediately determined that the object forming the bulge was a cell phone. PO Vasquez Miranda noted that the cell phone was enclosed in a case that made the bulge larger than usual. Once out of the car, § 87(2)(b) had made no movements.

Despite PO Reo's denial of having conducted a more thorough, full-body frisk of § 87(2)(b) PO Carleo corroborated § 87(2)(b)'s description of the frisk parameters. § 87(2)(g)

§ 87(2)(b) PO Vasquez Miranda said he did not recall PO Reo frisking any other part of § 87(2)(b)'s body aside from his pocket, § 87(2)(g)

An officer may frisk an individual when the officer has reasonable suspicion that the individual is in possession of a weapon. People v. Debour, 40 N.Y.2d 210 (1976) (encl. A1-A11). Expressing a grievance to the conduct of officers does not create reasonable suspicion that a person is armed. People v. Square, 872 N.Y.S.2d 693 (2008) (encl. A12-A15). A frisk may not be predicated merely on the observation of an undefinable bulge. People v. Marine, 142 A.D.2d 368 (1989) (encl. A16-A18).

PO Reo's suspicion that § 87(2)(b) had placed a weapon under the seat of his car stemmed from § 87(2)(b)'s furtive movement while inside the car and his combative demeanor throughout the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as exonerated.

Allegation B – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Thomas Reo searched § 87(2)(b)

§ 87(2)(b) alleged that after PO Reo frisked him, PO Reo asked if § 87(2)(b) had anything sharp in his pockets, § 87(2)(b) said no and that PO Reo could check him all he wanted to, and that PO Reo then reached his hands into all of § 87(2)(b)'s pockets. PO Reo denied reaching into any of § 87(2)(b)'s pockets and PO Vasquez Miranda and PO Carleo denied seeing PO Reo do so.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Jose Vasquez Miranda refused to provide his shield number to § 87(2)(b)

Allegation D – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Michael Carleo refused to provide his shield number to § 87(2)(b)

Allegation E – Abuse of Authority: In the vicinity of 195th Street and 122nd Avenue in Queens, PO Michael Koledin refused to provide his shield numbers to § 87(2)(b)

§ 87(2)(b) said that as he saw officers about to enter his car, he asked why they were searching it and said after they finished, he wanted “everyone’s badge numbers.” § 87(2)(b) alleged that none of the officers provided the requested information at the scene, although PO Reo did verbally provide his shield number to § 87(2)(b) later on at the stationhouse.

PO Vasquez Miranda corroborated § 87(2)(b)'s assertion that he asked for everyone’s shield numbers, but said he immediately provided his shield number to § 87(2)(b) and informed § 87(2)(b) that the information would also be on his arrest paperwork. PO Vasquez Miranda did not know whether any of his partners provided their shield numbers because he was not focused on them, but he never heard or saw them do so. Although PO Vasquez Miranda later backtracked and said § 87(2)(b) only asked for his shield number, he eventually reconfirmed that § 87(2)(b) had actually asked for shield numbers [plural]. PO Reo confirmed that he heard § 87(2)(b) ask for his shield number specifically, and said he verbally provided the requested information, but denied hearing § 87(2)(b) ask any other officer for their shield number. When asked whether he heard any other officer provide their shield number, PO Reo said, “I can’t say I did.” PO Carleo did not recall hearing § 87(2)(b) say anything to the effect of wanting “everyone’s” shield numbers and said he never provided his shield number to § 87(2)(b).

Officers must courteously and clearly state their shield numbers, or otherwise provide them, to anyone who requests them to do so. NYPD Patrol Guide Section 203-09 (encl. A19).

§ 87(2)(g)

§ 87(2)(g)

PO Carleo

confirmed that he never provided his shield number to § 87(2)(b) at any point during this incident.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated** and that **Allegation D** be closed as **substantiated**. Further, given that PO Koledin has resigned from service, it is recommended that **Allegation E** be closed as **miscellaneous – officer resigned**.

Allegation F – Abuse of Authority: At the 113th Precinct stationhouse, PO Thomas Reo refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that near the holding cells, PO Reo provided § 87(2)(b) with his shield number, but that when § 87(2)(b) asked for PO Reo's name, PO Reo refused to provide it. PO Reo did not recall § 87(2)(b) asking him for his name, but said he never provided that information to § 87(2)(b). None of the officers interviewed acknowledged witnessing this aspect of the incident. § 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: At the 113th Precinct stationhouse, PO Jose Vasquez Miranda searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that his car was searched at the stationhouse, but he did not witness the search take place. PO Vasquez Miranda confirmed that he searched § 87(2)(b)'s car at the stationhouse with the purpose of determining whether it contained additional weapons or contraband and to obtain § 87(2)(b)'s social security card and the car's registration. The interior of the car, center console, glove compartment, side pockets behind the front seats and the trunk were searched. A canister of mace was recovered from underneath the front passenger's seat and was vouchered as arrest evidence. PO Vasquez Miranda further vouchered § 87(2)(b)'s property, including cash and keys that were recovered from the car, but confirmed that additional items from the car, he could not recall exactly what they were, were not vouchered. PO Vasquez Miranda had asked § 87(2)(b) which items in the car belonged to him and vouchered those, but not the other items.

PO Vasquez Miranda said the car was not vouchered because it belonged to one of § 87(2)(b)'s relatives who subsequently picked the car up from the stationhouse after it had been there for approximately two hours. The search of the car and its release to its owner were not documented in PO Vasquez Miranda's memo book or anywhere else.

NYPD Interim Order # 27, Revision to Patrol Guide Section 218-13, states that the purpose of an inventory search of a vehicle in police custody must be to protect property, ensure against unwarranted claims of theft, and to protect officers and others against dangerous instrumentalities. Property of little value that is left inside the car should, within reason, be listed in the inventorying officers' memo book and cross referenced to the invoice number covering any valuables removed (encl. A20-A21). The search must produce a meaningful inventory list and must be conducted pursuant to an established procedure clearly limiting the conduct of individual officers that assures that the searches are carried out consistently and reasonably. People v. Gomez, 859 N.Y.S.2d 621 (2008) (encl. A22-A31).

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
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§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted] It is therefore recommended that **Allegation G** be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date